



THE NEWSPAPER EMPLOYEES (CONDITIONS OF SERVICE) ACT, 1973



CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Order of appointment, etc.
4. Termination of employment
5. Provident Fund
6. Hours of work
7. Leave
8. Medical care
9. Wage Board
10. Fixations of wages
11. Publication of the decision of the Board
12. Decision of Board to be deemed to be an award of the Commission
- 12A. Tribunal
13. Powers of the Tribunal
- 13A. Appeal from sentence of Tribunal
- 13B. Benches of the Tribunal, etc.
14. Powers and procedure of the Board
15. Decision of the Board to be binding on all employers

THE PAKISTAN CODE

- 16. Powers of Board to fix interim rates of wages
- 16A. Additional power of Board and Tribunal
- 17. W. P. Ordinance VI of 1968 to apply to newspaper establishment
- 18. Ordinance XXIII of 1969 to apply to newspaper employees
- 19. Effect of laws and agreements inconsistent with this Act
- 20. Inspectors
- 21. Offences and penalties
- 21A. Chairman, etc., to be public servants
- 22. Indemnity
- 23. Power to make rules
- 23A. Continuation of powers
- 24. Repeal and savings



THE PAKISTAN CODE

**THE NEWSPAPER EMPLOYEES (CONDITIONS OF SERVICE)
ACT, 1973.**

ACT NO. LVIII OF 1973

[11th August, 1973]

*An Act to repeal and, with certain amendments, re enact the Working Journalists
(Conditions of Service) Ordinance, 1960*

WHEREAS it is expedient to repeal and, with certain amendments, re enact the Working Journalists (Conditions of Service) Ordinance, 1960;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Newspaper Employees (Conditions of Service) Act 1973.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

- (a) “Board” means the Wage Board constituted under section 9;
- (b) “Commission” means the National Industrial Relations Commission constituted under section 22A of the Ordinance;
- ¹[(ba) “division concerned” means the division to which the business of this Act stands allocated;]
- (c) “newspaper” means any printed periodical work containing public news or comments on public news and includes such other class of printed periodical work as may, from time to time, be notified in this behalf by the Federal Government in the official Gazette;
- (d) “newspaper employee” means any person employed to do any work in, or in relation to, any newspaper establishment and includes —
 - (i) a whole-time journalist, including an editor, a leader writer, news editor, feature writer, reporter, correspondent, copy tester, cartoonist, news-photographer, calligraphist and proof-reader; and
 - (ii) a whole-time non journalist, including a manager, clerk, stenotypist, printing engineer, linotype operator, composer, type-setter, photo studio attendant, printing worker, an accountant and an office peon;

¹Ins. by Act No. XXVI of 2026, s.2.

- (e) “newspaper establishment” means an establishment under the control of any person or body of persons whether incorporated or not, for the production, printing or publication of one or more newspapers or for conducting any news agency or syndicate ;
- (f) “Ordinance” means the Industrial Relations Ordinance, 1969(XXI of 1969);
- (g) “prescribed” means prescribed by rules made under this Act ;
- ¹
[(gg) “Tribunal” means a Tribunal constituted under section 12A;]
- (h) “wages” means wages as defined in the Payment of Wages Act, 1936 (IV of 1936) and includes any gratuity or other payment declared as wages by the Board; and
- (i) all words and expressions used but not defined in this Act and defined in the Ordinance shall have the meanings respectively assigned to them in the Ordinance.

3. Order of appointment, etc.— A newspaper establishment employing a newspaper employee shall, at the time of his appointment, transfer or promotion, furnish to him an order in writing showing the terms and conditions of his service.

4. Termination of employment.— The services of a newspaper employee shall not be terminated by a newspaper establishment without good cause shown, through a notice, in writing, of such termination—

- (a) of one month, if the total period of continuous service of the newspaper employee with the newspaper establishment is not less than three months but less than two years;
- (b) of two months, if the total period of such service is not less than two years but less than three years; and
- (c) of three months, if the total period of such service is not less than three years;

Provided that, if the order of appointment of the newspaper employee provides notice of a longer period, notice shall be given in accordance with the terms of such order:

Provided further that the services of a newspaper employee may be terminated at any time on payment of wages in lieu of the requisite notice.

5. Provident Fund.—(1) Every newspaper establishment shall constitute, for the benefit of its newspaper employees, a Provident Fund in such manner as may be prescribed.

¹ Ins. by the Act No. LVI of 1975, s. 2.

(2) The Provident Fund shall be held and administered by a Board of Trustees consisting of an equal number of representatives of the newspaper establishment constituting the Fund and of the newspaper employees employed in it, chosen and appointed in such manner as may be prescribed.

(3) Every newspaper employee shall, after the completion of the first two years of his service with any newspaper establishment, subscribe to the Provident Fund, every month, a sum not less than 6-1/4 per cent and not more than 10 per cent of his monthly wages, and the employer in relation to that establishment shall contribute to it an equal amount.

(4) During the first three months of his service, the newspaper employee may or may not, at his option, subscribe to the Provident Fund and, if he so subscribe, the employer in relation to the newspaper establishment shall subscribe to it an equal amount.

(5) A newspaper establishment shall be deemed to be a public Institution for the purposes of the Provident Funds Act, 1925 (XIX of 1925).

6. Hours of work.— Subject to the Factories Act, 1934 (XXV of 1934), and any rules that may be made, or deemed to have been made under this Act, no newspaper employee shall be required to work in any newspaper establishment for more than forty-two hours in a week, exclusive of the time for meals.

Explanation.—For the purposes of this section, ‘week’ means a period of seven days beginning at mid-night on Saturday.

7. Leave.— Without prejudice to such holidays as may be prescribed, every newspaper employee shall be entitled to—

- (a) earned leave on full wages, for not less than one eleventh of the period spent on duty;
- (b) leave on medical certificate on one-half of the wages, for not less than one-eighteenth of the period of service subject to a minimum period of ten days in a calendar year ; and
- (c) Fifteen day’s casual leave of absence with wages in a calendar year.

8. Medical care.—(1) A newspaper employee shall be entitled, together with his dependents, to medical care at the cost of the newspaper establishment in, or in relation to, which he is employed.

(2) Medical care shall, subject to rules made under this Act, include—

- (a) treatment by a medical practitioner registered under the ¹[Medical and Dental Council Ordinance, 1962 (XXXII of 1962)], both at the clinic of such practitioner and at the residence of the newspaper employee;
- (b) treatment by specialists in hospitals and by such specialists as may be available outside hospitals ;

¹ Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.

- (c) essential pharmaceutical supplies as prescribed by a medical practitioner under clause (a) or by a specialist under clause (b) ; and
- (d) hospitalization, where necessary.

(3) The manner in which and the scale on which medical care shall be supplied shall be such as may be prescribed.

Explanation.—For the purpose of this section, “dependents” means the spouse, widowed mother and legitimate sons and daughters, including step-sons and step-daughters, of a newspaper employee, residing with and wholly dependent upon him.

9. Wage Board.—(1) The Federal Government may, whenever it so considers necessary, by notification in the official Gazette, constitute a Wage Board for fixing rates of wages in respect of newspaper employees in accordance with the provisions of this Act.

(2) The Board shall consist of a Chairman appointed by the Federal Government, who shall be a person who has been or is, or is qualified to be a Judge of a High Court, and as many members to advise the Chairman as may be appointed by the Federal Government, so, however, that one half of the members shall be persons representing the newspaper employees and the other half the employers in relation to newspaper establishments.

(3) The Board shall give its decision within a period of one hundred and eighty days from the day of its constitution.

10. Fixations of wages.—(1) In fixing rates of wages in respect of newspaper employees, the Board may take into consideration the cost of living, the prevalent rates of wages of comparable employments, the circumstances relating to the newspaper industry in different regions of the country, and any other circumstances which to the Board may seem relevant.

(2) The Board may fix rates of wages for time work and for piece work.

(3) The decision of the Board fixing rates of wages shall be communicated as soon as practicable to the ¹[division concerned].

11. Publication of the decision of the Board.—(1) The decision of the Board shall, within a period of one month from the date of its receipt by the ¹[division concerned], be published in such manner as may be prescribed.

(2) The decision of the Board published under subsection (1) shall come into operation on such date as may be specified in the decision, and where no date is so specified, it shall come into operation on the date of its publication, and shall remain in force until it is modified or varied by a later decision of the Board published in the manner provided in sub- section (1).

¹Subs. by Act No. XXVI of 2026, ss. 3 & 4.

12. Decision of Board to be deemed to be an award of the Commission.—A decision of the Board published under section 11 shall be deemed to be an award of the Full Bench of the Commission and, subject to the provisions of this Act, all the provisions of the Ordinance applicable to such award, including the provisions of sections 51 and 55 thereof, so far as may be and with the necessary modifications, shall apply to the decision of the Board.

Explanation.—For the avoidance of doubt, it is hereby declared that the decision of the Second Wage Board for Working Journalists published in the Extraordinary issue of the Gazette of West Pakistan, dated the 7th January, 1970, shall be deemed to have been published as required by the Ordinance.

¹[12A. Tribunal.]—(1) The Federal Government may, by notification in the official Gazette, constitute a Tribunal consisting of one or more members to implement the decision of the Board under section 11.

(2) The Chairman and members of the Tribunal shall be appointed by the Federal Government on such terms and conditions as it may determine.

(3) Where the Tribunal consists of one member only, that member, and, where the Tribunal consists of more members than one, the member designated by the Federal Government, shall be the Chairman of the Tribunal.

(4) The Chairman of the Tribunal shall be a person who has been, or is, or is qualified to be, a Judge of a High Court.

(5) The qualifications for appointment as a member of the Tribunal shall be determined by the Federal Government.]

13. Powers of the ¹[Tribunal].—(1) Notwithstanding anything contained in section 64 of the Ordinance, the ²[Tribunal] shall have power—

- (a) to try an offence punishable under section 55 of the Ordinance, if the offence relates to failure to implement any decision of the Board;
- (b) of its own motion, or on the application of a party, to withdraw from any Court (except the Supreme Court or a High Court) any application, proceeding or appeal relating to such an offence and dispose of it; and
- (c) refer any such application, proceeding or appeal to any such competent Court for disposal.

(2) Any Court to which any application, proceeding or appeal is referred under clause (c) of subsection (1) shall enquire into it and dispose of the case as if the application or appeal had originally been made to it or, as the case may be, the proceeding had originally commenced before it.

¹ Subs. by Act No. LXXVIII of 1976, ss. 2 & 3.

² Subs. by Act No. LVI of 1975, s. 4,.

(3) For the trial of an offence referred to in sub-section (1), the ¹[Tribunal] shall follow the same procedure and exercise the same powers as ²[the Commission] follows and exercises for the trial of an offence under the Ordinance, and the provisions of the Ordinance other than the provisions of sub-section (9) of section 22A, thereof, shall so far as may be and with the necessary modifications, apply to such trial.

³[⁴(4)] The Tribunal shall have the power to issue a direction which a Labour Court has under sub-section (1) of section 51 of the Ordinance.].

⁵[(5) Subject to any rules of procedure which may be prescribed, the Tribunal may, for the purpose of determining the category of a newspaper establishment or the grade of a newspaper employee or otherwise holding an inquiry for the purpose of implementing the decision of the Board, exercise the same powers and follow the same procedure, so far as may be and with the necessary modifications, as the Commission may exercise or follow for the purpose of adjudicating an industrial dispute under the Ordinance.

(6) The Tribunal may require a newspaper establishment to file a declaration in such form and give such information as the Tribunal may determine or require.].

⁶[**13A. Appeal from sentence of Tribunal.** Any person convicted and sentenced by the Tribunal under section 55 of the Ordinance to imprisonment for any period not less than six months may, with the leave of the Supreme Court, prefer an appeal to that Court.]

⁷[**13B. Benches of the Tribunal, etc.—** (1) The Chairman of the Tribunal shall exercise general superintendence over its affairs.

(2) Where the Tribunal consist of more members than one,—

- (a) the Chairman shall constitute as many benches of the Tribunal consisting of one or more members of the Tribunal as he may deem fit; and
- (b) if any member of the Tribunal who constitutes a bench, or is a member of a bench, is absent from, or otherwise unable to attend, any sitting of a bench, the Chairman of the Tribunal may take over the case himself, or transfer it to another bench, for disposal; and the Chairman, or, as the case may be, the other bench, may continue the proceedings from the stage they had reached.].

¹ Subs. by the Newspaper Employees (Conditions of Service) (Amdt.) Act, 1975 (56 of 1975), s. 4, for “Commission”.

² Subs. *ibid.*, for “it”.

³ New sub-section (3A) added *ibid.*, s. 4.

⁴ Re-numbered as sub-section (4) and shall be deemed to have been so re-numbered on the twenty-first day of July, 1975 by the Newspaper Employees (Conditions of Service) (Amdt.) Act, 1976 (78 of 1976), s. 3.

⁵ New sub-sections (5) and (6) added and shall be deemed always to have been so added on the twenty-first day of July, 1975, *ibid.*

⁶ New S. 13A ins. by Act 56 of 1975, s. 5.

⁷ New S. 13B added by Act 78 of 1976, s. 4.

14. Powers and procedure of the Board. Subject to any rules of procedure which may be prescribed, the Board may, for the purpose of fixing rates of wages, exercise the same powers and follow the same procedure, so far as may be and with the necessary modifications, as the Commission may exercise or follow for the purpose of adjudicating an industrial dispute under the Ordinance.

15. Decision of the Board to be binding on all employers. The decision of the Board shall be binding on all employers in relation to newspaper establishments, and every newspaper employee shall be entitled to be paid wages at a rate which shall, in no case, be less than the rate of wages fixed by the Board.

16. Powers of Board to fix interim rates of wages.—(1) Notwithstanding anything contained in this Act, where the Board is of the opinion that it is necessary so to do, it may, by notification in the official Gazette, fix interim rates of wages in respect of newspaper employees.

(2) Any interim rate of wages so fixed shall be binding on all employers in relation to newspaper establishments, and every newspaper employee shall be entitled to be paid wages at a rate which shall, in no case, be less than the interim rate of wages fixed under sub-section (1).

(3) Any interim rate of wages fixed under subsection (1) shall remain in force until the decision of the Board comes into operation under sub-section (2) of section 11.

¹[16A. Additional power of Board and Tribunal. The Board and the Tribunal shall have the same power to punish their respective contempts as the Commission has under section 22C of the Ordinance.

17. W. P. Ordinance VI of 1968 to apply to newspaper establishment. The provisions of the West Pakistan Industrial and, Commercial Employment (Standing Orders) Ordinance, 1968 (W.P. Ord. No. V of 1968), as in force for the time being, other than those contained in Standing Order 2 and clauses (1) and (2) of Standing Order 12 thereof, shall, subject to the other provisions of this Act, apply to every newspaper establishment wherein ten or more newspaper employees are employed or were employed on any day of the twelve months preceding the coming into force of this Act as if such newspaper establishment were an industrial establishment to which the aforesaid Ordinance has been applied by a notification under clause (c) of sub-section (4) of section 1 thereof, and as if a newspaper employee were a workman within the meaning of that Ordinance ¹[:]

¹[Provided that the provisions of this section shall not apply to a person who is employed as the editor of a newspaper].

*Explanation.—*For the avoidance of doubt, it is hereby declared that provisions of Standing Orders 10B and 11, clauses (6) and (8) of Standing Order 12 and Standing Order 15 of the aforesaid Ordinance shall apply only to a newspaper establishment which fulfils the conditions laid down therein.

¹ Added and subs by Act No. LXXVIII of 1976, ss. 5 & 6.

18. Ordinance XXIII of 1969 to apply to newspaper employees.— Subject to the other provisions of ¹[this Act] the provisions of the Ordinance shall apply to, or in relation to, newspaper employees, as they apply to, or in relation to, workmen within the meaning of the Ordinance :

Provided that nothing in this section applies to a newspaper employee—

- (i) who is employed mainly in a managerial or administrative capacity ¹[or is the editor of a newspaper,] or
- (ii) who, being employed in a supervisory capacity, performs, either because of the nature of duties attached to his office or by reason of the powers vested in him functions mainly of a managerial nature.

19. Effect of laws and agreements inconsistent with this Act.—(1) The provisions of this Act shall have effect notwithstanding anything inconsistency therewith contained in any other law or in the terms of any award, agreement or contract of service, whether made before or after the coming into force of this Act:

Provided that, subject to the provisions of section 73 of the West Pakistan Employees' Social Security Ordinance, 1965 (W.P. Ord. No. X of 1965), where under any such award, agreement, contract of service or otherwise, a newspaper employee is entitled to benefits in respect of any matter which are more favourable to him than those to which he would be entitled under this Act, the newspaper employee shall continue to be entitled to the more favourable benefits in respect of that matter notwithstanding that he receives benefits in respect of other matters under this Act.

(2) Nothing contained in this Act shall be construed to preclude any newspaper employee from entering into an agreement with an employer for granting him rights or privileges in respect of any matter which are more favourable to him than those to which he would be entitled under this Act.

20. Inspectors.—(1) The Federal Government may, by notification in the official Gazette, appoint such persons as it thinks fit to be Inspectors for the purposes of this Act within such local limits as it may assign to them respectively.

(2) An Inspector shall perform within the local limits assigned to him such functions in relation to the implementation of the decision of the Board published under section 11 as may be prescribed.

(3) An Inspector may—

- (a) at all reasonable hours enter on the premises of any newspaper establishment and make such examination of any register or document relating to the implementation of the decision of the Board published under section 11 and take on the spot or otherwise evidence of any person relevant to such implementation as he may deem necessary ;

¹ Subs. and ins. by Act No. LXXVIII of 1976, s. 7.

- (b) exercise such other powers of inspection as he may deem necessary for carrying out the purposes of this Act.

21. Offences and penalties.—(1) Whoever contravenes the provisions of section 6 shall be punishable with fine which may extend to two thousand rupees.

(2) Whoever contravenes any of the provisions of this Act or any rule made, or deemed to have been made, thereunder shall, if no other penalty is elsewhere provided by or under this Act for *such* contravention, be punishable with fine which may extend to one thousand rupees.

(3) Where the person guilty of an offence under this Act is a company or other body corporate, every director, manager, secretary and other officer thereof shall, unless he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent its commission also be guilty of the same offence and liable to the same punishment.

(4) No Court shall take cognizance of an offence under this Act unless the complaint thereof is made within six months of the date on which the offence is alleged to have been committed.

¹[**21A. Chairman, etc., to be public servants.** The Chairman of the Board and the Chairman and members of the Tribunal shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860)].

22. Indemnity. No suit, prosecution or other legal proceedings shall lie against any person or authority for anything which is in good faith done or intended to be done in pursuance of this Act or any rule made, or deemed to have been made, thereunder.

23. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

- (a) hours of work of newspaper employees ;
- (b) holidays, earned leave, leave on medical certificate, casual leave or any other kind of leave admissible to newspaper employees;
- (c) the constitution of Provident Fund;
- (d) the constitution of Board of Trustees for the administration of Provident Fund;
- (e) the procedure for regulating the management and administration of Provident Fund and the conditions subject to which such Fund shall operate;
- (f) the procedure to be followed by the Board in fixing rates of wages;

¹ Added by Act No. LXXVIII of 1976, s. 8.

(g) the manner in which the decision of the Board may be published; ^{1*}

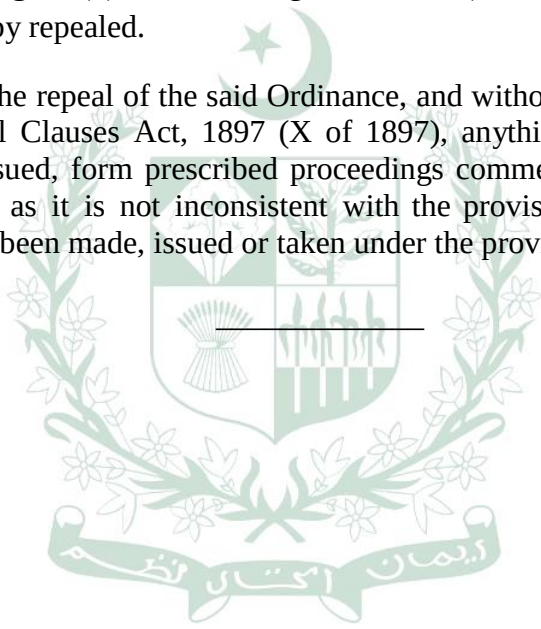
²[(gg) the procedure to be followed by the Tribunal in determining the categories of newspaper establishments or grades of newspaper employees or holding an inquiry for the purpose of implementing the decision of the Board; and].

(h) any other matter which is to be or may be prescribed.

³[**23A. Continuation of powers.** The powers conferred by this Act on the Federal Government shall, as from the fourteenth day of August, 1973, continue to be exercised by the Federal Government.]

24. Repeal and savings.—(1) The Working Journalists (Conditions of Service) Ordinance, 1960, (XVI of 1960), is hereby repealed.

(2) Notwithstanding the repeal of the said Ordinance, and without prejudice to the provisions of section 24 of the General Clauses Act, 1897 (X of 1897), anything done, appointment made, notification, order or rule issued, form prescribed proceedings commenced, or action taken under that Ordinance shall, so far as it is not inconsistent with the provisions of this Act, continue in force and be deemed to have been made, issued or taken under the provisions of this Act.



THE PAKISTAN CODE

¹ The word “and” omitted by the Newspaper Employees (Conditions of Service) (Amdt.) Act, 1976 (78 of 1976), s. 9.

² New Cl. (gg) ins. *ibid.*,

³ New S. 23A ins. and shall be deemed to have been so ins. on the 14th day of August, 1973, by the Labour Laws (Amdt.) Act, 1975 (11 of 1975), s. 2 and Sch.,

Dated 07-04-2026